

The moving papers sufficiently establish that the proposed settlement is fair, reasonable, and adequate to justify final approval.

The motion is granted, with the change in representative payments as indicated. Counsel are directed to prepare an order reflecting this tentative ruling, and the other findings in the previously submitted proposed order and a separate judgment. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented, the date for which should be obtained through consultation with the Department clerk. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

5. 9:00 AM CASE NUMBER: C23-02357
CASE NAME: LISA ROSS VS. CHENETTE CARTER
***HEARING ON MOTION IN RE: 2ND AMENDED COMPLAINT**
FILED BY:
TENTATIVE RULING:

Before the Court is Plaintiff Lisa Ross' Motion for Leave to File Second Amended Complaint ("Motion").

Procedural Background

Plaintiff Lisa Ross filed her initial complaint on September 21, 2023. The operative First Amended Complaint was filed on December 15, 2023.

On February 10, 2026, Defendant Charlie Ross filed a Motion for Summary Judgment. On February 18, 2026, Plaintiff filed an ex parte application for leave to file a Second Amended Complaint ("SAC"). The Court **denied** the ex parte application on February 19. The Order, entered on February 20, stated: "Plaintiff may request leave to file S.A.C. as part of opposition to defendant's motion for summary judgment set for hearing on 3/12/26."

Plaintiff filed her Opposition to Defendant's MSJ on March 10, 2026. In her Opposition, Plaintiff argues that she should be permitted to file a Second Amended Complaint.

No trial date has been set for this matter. A Case Management Conference is scheduled to occur on the same date as the hearing on this motion.

Standard

Code of Civil Procedure section 473(a)(1) provides the Court discretion to permit a party to amend its pleadings. There is "a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial [citations]..." (*Magpali v. Farmers Group* (1996) 48 Cal.App.4th 471, 487.) Leave to amend can be denied where there is "'inexcusable delay and probable prejudice to the opposing party'... [Citation.]" (*Ibid.*)

"[I]t is a rare case in which 'a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.'" (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530 quoting *Guidery v. Green* (1892) 95 Cal. 630, 633.) "Generally, leave to amend must be liberally granted [Citation], provided there is no statute of limitations concern, nor any

prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation.” (*Solit v. Tokai Bank* (1999) 68 Cal.App.4th 1435, 1448.)

A party opposing amendment must demonstrate that permitting the amendment will cause it to suffer prejudice. (*Rickley v. Goodfriend* (2013) 212 Cal.App.4th 1136, 1159; see also *Mesler v. Bragg Mgmt. Co.* (1985) 39 Cal.3d 290, 296-297.) “Motions to amend are appropriately granted as late as the first day of trial ... or even during trial ... if the defendant is alerted to the charges by the factual allegations, no matter how framed ... and the defendant will not be prejudiced.” (*Ibid.* quoting *Honig v. Financial Corp. of America* (1992) 6 Cal.App.4th 960, 965.)

Initial Consideration

Page Numbers

“Each page must be numbered consecutively at the bottom unless a rule provides otherwise for a particular type of document. The page numbering must begin with the first page and use only Arabic numerals (e.g., 1, 2, 3). The page number may be suppressed and need not appear on the first page.” (Cal. R. Ct. 2.109.) In addition, the footer of the document “must contain the title of the paper (examples: ‘Complaint,’ ‘XYZ Corp.’s Motion for Summary Judgment’) or some clear and concise abbreviation.” (Cal. R. Ct. 2.110.)

Defendant’s Opposition fails to include page numbers anywhere and there is no footer with any information. Counsel is reminded to comply with the Rules of Court going forward.

When the Court references the Motion papers it begins numbering on the page where the Introduction starts.

Analysis

Defendant argues that Plaintiff has already amended once and “has not corrected the fundamental deficiencies in her ownership allegations.” (Opp. at 3:15-16.) Defendant did not demur or move to strike any allegations in the FAC, and there has been no ruling that any of the allegations contained therein were deficient. As such, it is unclear what Defendant means by the above argument.

Defendant also contends that since the “proposed amendment would not survive a dispositive challenge on this issue [i.e. ownership of the property], leave to amend should be denied as futile.” (Opp. at 4:8-9.) It is true that certain situations would call for denial of leave to amend, such as when the “insufficiency of the proposed amendment is established by controlling precedent and where the insufficiency could not be cured by further appropriate amendment.” (*California Casualty Gen. Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274, 280-81.)

Defendant, however, presents no legal arguments or citations supporting her position. Even if such authority was presented, “the preferable practice would be to permit the amendment and allow the parties to test the legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings.” (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.)

With respect to prejudice, Defendant argues that additional responsive pleadings, discovery, and motion practice will result, and that there will be a delay in resolution of the case, along with increased litigation expenses. (Opp. at 5:1-9.) To begin with, Defendant’s arguments in their

Opposition do not constitute evidence. “Matters set forth in points and authorities are not evidence.” (*Alki Partners, LP v. DB Fund Services, LLC* (2016) 4 Cal.App.5th 574, 590.) “Evidence appears elsewhere – in deposition testimony, discovery responses, and declarations.” (*Ibid.*; see also *In re Marriage of Duris & Urbany* (2011) 193 Cal.App.4th 510, 515.)

Defendant presents no evidence that shows how a delay in the case might impact him, nor indicating if or how drastic an increase in litigation expenses will occur if leave to amend is granted. While it is true that granting leave to amend will require additional responsive pleadings, and possibly more discovery and motion practice – that alone is insufficient to deny a party an opportunity to amend. “Where no prejudice is shown to the adverse party, the liberal rule of allowance prevails.” (*Higgins v. DelFaro* (1981) 123 Cal.App.3d 559, 564.) A party opposing amendment must demonstrate that permitting the amendment will cause it to suffer prejudice.

Conclusion

Based on the above, Plaintiff’s motion for leave to file the Second Amended Complaint is **granted**. Plaintiff shall file the Second Amended Complaint within 10 days of notice of entry of the order on this motion.

6. 9:00 AM CASE NUMBER: C25-01475
CASE NAME: AUDREY WELSCH VS. HAYDEN FLOREZ
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL FOR AUDREY WELSCH**
FILED BY:
TENTATIVE RULING:

The Court was awaiting further information, which has not yet been filed. Parties to appear.

7. 9:00 AM CASE NUMBER: C25-02864
CASE NAME: KEVIN SUAREZ VS. PBF ENERGY WESTERN REGION LLC
***HEARING ON MOTION IN RE: STAY PROCEEDINGS**
FILED BY: PBF ENERGY WESTERN REGION LLC
TENTATIVE RULING:

The Motion was withdrawn on August 25, 2026. The Court confirms the further case management conference on March 2, 2027, at 8:30 a.m. in Department 10.

8. 9:00 AM CASE NUMBER: C25-03006
CASE NAME: MICHAEL KITTERMAN VS. DR. CHRIS WANG, MD
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: JOHN MUIR HEALTH
TENTATIVE RULING:

Before the Court is Defendant John Muir Health’s Demurrer. Kitterman has filed no opposition. Indeed, it does not appear that Kitterman has participated in his case for several months. The Court is moderately concerned that, given the facts underlying this action, Mr. Kitterman may have passed